

Court No. - 6

Case :- WRIT - C No. - 15033 of 2024

Petitioner :- M/S My Car P Ltd

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Tinku Singh, Vijay Singh Gour

Counsel for Respondent :- C.S.C., Usha Kiran

Hon'ble Dinesh Pathak, J.

1. After due deliberations at length, learned counsel for the petitioner prays for to adjourn the case for the day.
2. Put up this matter **as fresh on 05.07.2024.**

Order Date :- 28.5.2024

VR

Court No. - 33

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Petitioner :- M/S My Car P Ltd

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Tinku Singh, Vijay Singh Gour

Counsel for Respondent :- C.S.C., Usha Kiran

Hon'ble Chandra Kumar Rai, J.

1. Stamp reporter has reported the laches of 1309 days in filing the instant writ petition, which has been explained by the petitioner in paragraph no.54 of the writ petition.
2. Heard Mr. Vijay Singh Gour, learned counsel for the petitioner, Ms. Usha Kiran, learned counsel for the respondent nos.2 & 3 and learned Standing Counsel for the State-respondents.
3. Learned counsel for the petitioner submitted that the change of category from HV-1 to HV-2 as well as assessment made is contrary to the provisions contained under Clause 4.4 of Uttar Pradesh Electricity Supply Code, 2005.
4. On the other hand, Ms. Usha Kiran, learned counsel for respondent nos.2 & 3 submitted that there is laches in filing the writ petition, as such, the same cannot be entertained as the explanation given for laches is not sufficient. She further submitted that the writ petition is not maintainable against the impugned order.
5. Matter requires consideration.
6. Respondent nos.2 & 3 will file counter affidavit within six weeks.
7. Petitioner shall file rejoinder affidavit within two weeks thereafter.
8. List this case in the additional cause list on 23.9.2024.

Order Date :- 5.7.2024

Rameez